

Court No. - 2

Case :- WRIT - C No. - 71112 of 2009

Petitioner :- Smt. Krishna Devi Mishra

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arun Kumar Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Smt. Mridula Tripathi has appeared on behalf of respondent nos. 2 and 3.

She prays time to obtain instruction.

Put up on 19/1/2010, as fresh.

Order Date :- 11.1.2010

SB

Court No. - 2

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Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arun Kumar Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Smt. Mridula Tripathi learned standing counsel appearing on behalf of respondents no.2 and 3 prays for and is allowed ten days time to file counter affidavit. Learned counsel for the respondent has placed on record the temporary disconnection slip dated 17.3.2008 showing the reading as 40709 and arrears of Rs.55261/-.

Put up on 8.2.2010 as fresh.

Order Date :- 19.1.2010

Hsc/

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Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

As prayed by the learned counsel for the petitioner put up on 15/2/2010, as fresh.

Order Date :- 8.2.2010

SB

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Respondent :- State Of U.P. & Others

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Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Counter, supplementary counter and rejoinder affidavits filed today be kept on the record.

Heard learned counsel for the petitioner and Smt. Mridul Tripathi appearing for the respondents No.2 and 3.

By this writ petition, the petitioner has prayed for a writ of mandamus commanding the respondents to decide representation dated 20th August, 2009 moved by the petitioner in respect of dispute of the electricity bill.

Along with the supplementary counter affidavit, the petitioner has brought on the record amended bill dated 31st January, 2010 of an amount of Rs.93,974/-. The representation of the petitioner was considered and an amount of Rs.12,000/- has been accounted for and amended bill has been issued. If the petitioner is aggrieved by the amended bill, the remedy of the petitioner is to take recourse to the forum provided under the U.P. Electricity Supply Code, 2005.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 15.2.2010

Rakesh